

Form No. HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

W.P. No. 485 of 2025

Miraj Zubair. Vs. RPO, etc.

Sr. No. of order of proceeding	Date of order of proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
1	2	3

08.01.2025 Ms. Nosheen Ambar Bukhari and Syeda Zunaira Gillani, Advocates for petitioner.
Barrister Hassan Khalid Ranjha, Additional Advocate General with Hafeez S.I, Nawaz S.I. with Arif Ali in custody.
Syed Ali Raza Abbas, Assistant Attorney General for Pakistan.

The petition in hand is moved by Miraj Zubair (petitioner) for the recovery and production of her husband, namely, Arif Ali (detenue) statedly in illegal and unlawful confinement of Station House Officer, P.S. Renala City District Okara.

2. This petition was placed before the Court on 07.01.2025 and in accordance with canvassed grievance, Bailiff was deputed for doing the needful towards the recovery of Arif Ali (detenue). Accordingly, today Muhammad Qaiser Bailiff of this Court submitted a report from which it divulged that he visited the concerned police station on 07.01.2025 at about 06:20 p.m. and found Arif Ali detained in the police station. According to Bailiff, upon a query raised by him, Arif Ali (detenue) informed him that he was arrested from his hotel situated in Sahiwal and is in police custody since 19.12.2024 without formal arrest. The detenue further agitated before the Bailiff that despite being in custody of police since long, he has not been produced before any court. The most important aspect, which emerged from the Bailiff’s report, is to the effect that although arrest of the detenue was recorded by the police in Daily diary vide report No.9 at 08.40 a.m. on 07.01.2025 yet

the file of the case in which detainee had been arrested was not produced by claiming the same to be in possession of the Investigating Officer, who was not available at the police station at the relevant time. The petitioner claims that she along with her husband had also been taken into custody on 19.12.2024, however she had been released on 24.12.2024 but her husband had not been released and today in support of her claim she has produced an affidavit to that effect in the Court, which has been retained in the file.

3. In compliance with notice of this Court issued vide order dated 07.01.2025, Hafeez Ullah S.I./SHO has entered appearance along with the detainee. On Court's query, Hafeez ullah S.I. stated that the detainee has been arrested in case FIR No. 1608/2024 dated 24.11.2024 registered u/s 392 PPC and red colour motorcycle No. OKM-412 King Hero Model 2017 snatched from the complainant of afore-referred FIR had been recovered from the detainee, who had been arrested on 07.01.2025 and his identification parade was yet to be held. However, it is not denied that by the time Bailiff raided the police station detainee had not been produced before any court. The aforementioned FIR has also been perused by this Court and noticed that it was registered for an incident having occurred on the intervening night of 24th and 25th November, 2024 for the theft of some costly equipment including snatching of afore-referred motorcycle, for which the afore-mentioned case was registered against unknown persons and admittedly the detainee was not nominated therein even as suspect. The report of Bailiff shows that he was informed by the Mohrar that the detainee was implicated in the case through the supplementary statement of complainant but no such supplementary statement of complainant was produced before him. Even the record of the recovery of the motorcycle from the

detenue was not produced before the Bailiff and in view thereof possibility of subsequent preparation of record could not be ruled out, hence despite production of police record before this Court, definite conclusion could not be drawn on the basis of material available before this Court that the afore-mentioned motorcycle had been recovered from the detenue, which is required to be established by recording of evidence. In case reported as Sheikh Tariq versus Muhammad sharif, S.I./SHO, Police Station Model Town, Lahore and another (1993 P Cr. L J 2065), where recoveries against the detenue/accused was found to be suspicious, the habeas corpus petition was allowed and detenue was released on bail. Moreover, where nomination of the accused through supplementary statement could not be established from the record before the Bailiff of the Court, the detenue was released on bail in case reported as Mst. Miran Mai versus Station House Officer, CIA, Multan (PLD 2001 Lahore 459). Furthermore, detenue appears to have been detained merely on the basis of suspicion and in such circumstances in case reported as Ali Ahmed versus Muhammad Yakoob Almani, Deputy Superintendent of Police, Qasimabad, Hyderabad and 5 others (PLD 1999 Karachi 134), the detenue despite recording of his arrest was released on bail in the habeas corpus petition. Needless to mention that this Court is competent to convert one type of proceedings into another type of proceedings which power also includes conversion of habeas corpus petition into bail application where court while dealing the habeas corpus petition came to the conclusion that detention of a person required justification and/or such detention was found to be illegal and unauthorized or had been effected on the ground of suspicion only.

4. From the facts mentioned above, this Court is convinced that the respondents had failed to justify the

detention of the detainee in the police station and while keeping in view the aforementioned affidavit sworn on oath submitted by the petitioner, it convincingly emerges that *prima facie* the detainee was not lawfully detained by the Station House Officer in Police Station Renala City, District Okara, thus this petition is converted into bail petition and detainee is admitted to bail for next 07 days and is ordered to be set at liberty forthwith in order to enable him to approach appropriate court for getting his bail in case FIR No.1608/2024.

5. With this observation, the instant petition is *disposed of*.

(Muzamil Akhtar Shabir)
Judge

Approved for reporting.

Judge

*M*Rizwan*